

WEEK 5

The State and Its Elements

Definition of the State

- **Most universal and powerful** social institution.
- A **natural institution**—Aristotle described man as a social and political being, considering life in a state as part of human nature.
- The modern term 'state' comes from '**status**', first used by **Niccolo Machiavelli** in his work *Prince*.
- The state is necessary for **basic needs** and exists for the sake of a **good life**.
- It translates **human aims, desires, and aspirations** into action.

Definitions by Different Thinkers

- **Woodrow Wilson**: A state is "a people organized for law within a definite territory."
- **Aristotle**: A state is "a union of families and villages aiming for a happy and honorable life."
- **Holland**: A state is "a numerous assemblage of human beings occupying a territory where the majority's will prevails."
- **Burgess**: Defines a state as a particular portion of mankind.
- **Sidgwick**: A state is "an association of persons in the form of government and governed, united in a defined territory."
- **Garner**: Describes a state as a "community of people with a definite territory, free from external control, possessing an organized government."
- **Prof. Laski**: A state is a "territorial society with a division of government and subjects, based on supreme coercive power."

Elements of the State

The state has four key elements:

1. Population

- People form the foundation of a state.
- A state needs a population—**neither too large nor too small** according to Greek thinkers.

2. Territory

- A state must have a **fixed territory** for people to live and organize.

- Territory includes **land, water, and airspace**.
- Territory sizes vary among modern states.
- **Territorial sovereignty** means the state has supreme authority within its borders, as emphasized by Prof. Elliott.

3. Government

- The **political organization** and working agency of the state.
- Without a government, there can be no state.
- **Prof. Appadorai**: Government is the agency through which the **will of the state** is formulated and realized.
- **C.F. Strong**: Government is needed to **make and enforce laws**.

4. Sovereignty

- Refers to the **supreme and final legal authority** of the state.
- **Jean Bodin** is known as the father of modern sovereignty theory.
- **Internal Sovereignty**: State's authority over its citizens and associations.
- **External Sovereignty**: State's **independence from foreign control**.
- **Harold J. Laski**: Sovereignty distinguishes the state from all other forms of human associations.

State and Society

Differences Between State and Society

Prof. Earnest Barker outlines differences between state and society in three aspects:

1. Purpose or Function:

- **State**: A **legal association** focused on making and enforcing a permanent system of **law and order**.
- **Society**: A **plurality of associations** serving various purposes like:
 - Intellectual
 - Moral
 - Religious
 - Economic
 - Aesthetic
 - Recreational
- While both share the same members, the **state has a single purpose**, whereas **society has multiple purposes**.

2. Organization and Structure:

- **State:** A **single organization** focused on legal matters.
- **Society:** Comprises **many organizations**.

3. Method:

- **State:** Uses **coercion or compulsion**.
- **Society:** Uses **voluntary action**. Members can join or leave different associations without coercion.

State and Nation

- **Origin:** The word 'nation' comes from the Latin term '**natio**' meaning birth or race.
- **Leacock's Definition:** A nation is a group of people with **common descent and language**.
- **Modern View:** Focuses less on racial aspects and more on **psychological and spiritual** connections.
- A **nation** is united by **shared ideas and affinities**, whereas a **state** is based on the four elements (population, territory, government, sovereignty) without necessarily needing a **feeling of oneness**.

State and Government

Differences Between State and Government

- **State:**
 - Consists of **population, territory, government, and sovereignty**.
 - Possesses **original powers**.
 - Is **permanent**.
 - Is **abstract** and **invisible**.
- **Government:**
 - Is **part of the state**.
 - Derives its **powers from the state**.
 - Is **temporary** and can change over time.
 - Is **concrete** and **visible**.

Branches of Government

1. Executive

- **Role:** Enforces laws passed by the legislature.
- **Types:**
 - **Real Executive:** Holds and exercises **actual power**.
 - **Nominal Executive:** Holds **formal power** without real authority.

- **Functions:**
 - Enforcing laws.
 - Maintaining **peace and order**.
 - **Repelling aggression** and building **international relations**.
 - Waging **war** if necessary.
 - Making **high-level appointments**.
 - **Raising and spending funds**.
 - **Convening legislature sessions**.
 - Issuing **ordinances** when legislature is not in session.
 - Implementing **social and economic projects**.
 - **Granting pardons** and reducing sentences.

2. Legislature

- **Role:** Responsible for **making laws** and **amending the constitution**.
- **Importance:** Considered the **law-making branch** and a platform for **discussion and debate** on national issues.
- **Notable Example:** The **British Parliament**—the oldest legislature, known as "the mother of parliaments."
- **Prof. Laski:** Stated that the real function of the legislature is to **oversee administration** and **protect citizens' liberties**.
- **Structure:** Often includes a **Lower House** (e.g., National Assembly) and an **Upper House** (e.g., Senate).
- **Functions:**
 - Enacting laws.
 - **Overseeing administration**.
 - Approving the **budget**.
 - Addressing **public grievances**.
 - Discussing:
 - Development plans.
 - National policies.
 - International relations.

3. Judiciary

- **Role:** **Interprets laws** and **administers justice**.

- **Lord Bryce:** Highlights the judiciary as a measure of a government's excellence.
- **Importance:** A key pillar of **democracy**, ensuring **justice, equality, and liberty**.
- **Justice Hughes:** Emphasized the role of judges in defining the constitution.
- **Functions:**
 - **Administration of justice.**
 - **Interpreting** the constitution and laws.
 - Providing **advisory opinions** on referred matters.
 - Issuing **orders or writs** to prevent rights violations.
 - Acting as the **guardian of the constitution**.

Political System and State Structure of Pakistan

Early Challenges and Military Rule

- **Post-independence** Pakistan faced **major challenges**:
 - Death of **Muhammad Ali Jinnah** in 1948 and **assassination of Prime Minister Liaqat Ali Khan** in 1951 destabilized the country.
 - Resulted in **conflicting visions** for the country's direction.
- **1956:** Pakistan's first constitution established the country as a **republic** within the Commonwealth.
- **1958:** General **Ayub Khan** launched Pakistan's first **military coup** and declared **martial law**.
 - Became **President** in 1960 and introduced a **new constitution in 1962**.
- **1965:** Loss in the **war with India**, **corruption**, and strained relations with **East Pakistan** weakened Ayub Khan, leading to his resignation in **1969**.

1970 Elections and Independence of Bangladesh

- **1970:** First **national democratic elections**.
 - **Awami League**, led by **Shaikh Mujibur Rahman**, won a majority but power was not transferred, leading to **tensions** between **East and West Pakistan**.
- **March 1971:** **Mujibur Rahman** declared the **independence of Bangladesh**.
 - This led to a **nine-month civil war**, followed by **Indian intervention** in **December 1971**.
 - Resulted in **Bangladesh's independence** and the **surrender** of Pakistani forces.
- **1971:** General **Yahya Khan** resigned, **Zulfiqar Ali Bhutto** became **President** and **Chief Martial Law Administrator**.

The 1973 Constitution

- **April 10, 1973: National Assembly** approved the new **Constitution**, effective **August 14, 1973**.
- **Pakistan** was declared a **Federal Republic**, officially named the **Islamic Republic of Pakistan**.
- Recognized **Islam** as the **state religion**.
- **Federation** consisted of **four units: Punjab, Sindh, NWFP (now Khyber Pakhtunkhwa), and Balochistan**.
- The Constitution is **parliamentary** with a **bicameral legislature**:
 - **National Assembly** (Lower House).
 - **Senate** (Upper House).
- The **18th Amendment** (April 2010):
 - Reversed many changes from **military regimes**.
 - **Increased provincial autonomy**.
 - Renamed **NWFP** to **Khyber Pakhtunkhwa**.

Executive Branch

- **President:**
 - **Head of State**; acts on the advice of the **Prime Minister**.
 - Can be removed due to **incapacity** or **impeached** for **violating the Constitution** or **misconduct** by a **two-thirds vote** of Parliament.
 - Elected by an **Electoral College** (Senate, National Assembly, and Provincial Assemblies) for a **5-year term**.
 - **Appoints** the **Attorney General**, **judges**, and **Governors** for each province.
- **Prime Minister:**
 - **Appointed** by the **President** from **National Assembly** members.
 - Must have **majority support** in the National Assembly.
 - **Assisted** by the **Federal Cabinet**.
 - Cabinet includes **ministers**, **ministers of state**, and **advisers**.

Legislature

- **Bicameral Federal Legislature:** Known as **Majlis-i-Shoora (Council of Advisors)**.
 - **National Assembly:**
 - **342 seats:** 272 general, **60 reserved for women**, and **10 for non-Muslim minorities**.
 - Members serve a **5-year term**.
 - **Elected by universal adult suffrage** (18+ years).

- Can initiate and pass **all types of bills**, including **money bills**.
- **Senate:**
 - **100 members** with **equal representation** from **provinces**.
 - Members serve a **6-year term**, with **half the members retiring every 3 years**.
 - **Permanent body** with roles in **legislation** and **representation**.
 - **Chairman of the Senate** serves as **acting President** if the position becomes vacant.

Legislative Process

- Both **National Assembly** and **Senate** can **initiate legislation**, except **money bills**, which are exclusive to the **National Assembly**.
- **Bills** related to the **Federal Legislative List:**
 - Can originate in either house and, if approved by both, are sent to the **President** for **assent**.
 - If a bill is rejected or not approved within **90 days**, it is considered in a **joint sitting of Parliament**.
- **Parliament** holds the power to **legislate for provinces** during an **emergency**.

Removal Procedures

- **Prime Minister:** Can be removed through a **no-confidence vote** initiated by **20%** of National Assembly members and passed by a **majority**.
- **President:** Can be impeached if **half** the membership of either House initiates the process, and it passes with a **two-thirds majority** in a **joint session**.

Emergency Powers

- During a **State of Emergency**, **Parliament** gains the power to **legislate for provinces**.
- **Emergency legislation** remains in force for **6 months** after the end of the emergency, but actions taken remain valid.

These notes summarize key events, structures, and roles within the **political system of Pakistan**, offering a concise overview of its **constitutional history**, **government branches**, and **legislative process**.

Judiciary

- **Free and Independent Judiciary:** The 1973 Constitution guarantees judicial independence and citizens' rights, including protection by law.
- **Fundamental Rights:** Includes rights like life, liberty, equality, freedom of speech, and trade. Laws inconsistent with these rights are deemed null and void.
- **Supreme Court:**

- Apex court in Pakistan, handling legal and constitutional disputes.
- Consists of a Chief Justice and up to 16 other judges.
- Judges appointed by the President, with consultation required for other appointments.
- Judges serve until the age of 65.
- **High Courts:** Present in each province with original and appellate jurisdiction.
 - Judges appointed by the President in consultation with the Chief Justice of the Supreme Court, provincial governors, and relevant Chief Justices.
- **2007 Suspension of Chief Justice:**
 - Chief Justice Iftikhar Muhammad Chaudhry suspended by the government.
 - Led to widespread protests and legal challenges.
 - Reinstated in July 2007 by the Supreme Court but removed again during the 2007 emergency declared by General Musharraf.
 - Finally reinstated in March 2009 after more protests, following Musharraf's resignation.
- **Federal Shariat Court:**
 - Reviews laws for conformity with Islamic injunctions.
 - Consists of 8 Muslim judges, including ulema (Islamic scholars).
 - Can overrule laws that contradict Islamic principles, with the responsibility to amend lying with the President or provincial governor.
 - Hears appeals under hudood laws (laws on certain offenses like theft and adultery).
- **Special Courts and Tribunals:**
 - Handle specific cases such as drug offenses, labor disputes, and terrorism.
 - Appeals generally go to high courts, with some exceptions having their own appellate processes.
- **Wafaqi Mohtasib (Ombudsman):**
 - Addresses citizens' complaints against public officials.
 - Appointed by the President for a four-year term (non-renewable).
 - Aims to improve administrative accountability and curb misuse of power.
 - Jurisdiction excludes foreign affairs, national defense, and service matters.

Military

- **Military's Role in Politics:**

- The military has frequently intervened in Pakistan's political affairs, with four major takeovers.
 - Military regimes led by General Ayub Khan, General Yahya Khan, General Zia-ul-Haq, and General Pervez Musharraf.
 - Military rule has persisted for about half of Pakistan's history.
 - **Influence Beyond Military Rule:**
 - The military has acted as a mediator in civilian politics and influenced foreign policy, especially concerning India and Afghanistan.
 - Economic interests have also played a role in the military's involvement in governance and policy-making.
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Elections

- **Civilian vs. Military Rule:**
 - Pakistan's electoral history has been a tug-of-war between military regimes and civilian governments.
 - Dominated by parties like the Pakistan Peoples Party (PPP) and factions of the Pakistan Muslim League (PML).
- **Voter Clusters:**
 - Four main clusters: PPP, Muslim League factions, religious parties, and regional parties.
 - PPP and Muslim League typically capture 60-75% of votes.
 - Alliances between parties are often necessary for forming governments.
- **Key Events (1990s to 2008):**
 - 1998: Nuclear tests in response to India's tests.
 - 1999: Kargil conflict and subsequent coup by General Musharraf.
 - 2007: National Assembly completed its term for the first time; new elections called.
 - **2008 Election:**
 - Benazir Bhutto assassinated, leading to delayed elections.
 - PPP led by Bhutto's son Bilawal Bhutto Zardari and Asif Ali Zardari.
 - Coalition government formed by PPP and PML-N.
 - Yousaf Raza Gillani appointed as Prime Minister.
 - Pervez Musharraf resigned in August 2008; replaced by Asif Ali Zardari in September.

These notes summarize the judicial structure, role of the military, and key aspects of Pakistan's electoral history for easier understanding and study.

Local Government

- **Pre-2001 System:** Sub-provincial government had 26 divisions with districts and tehsils directly managed by provincial governments.
- **2001 Local Government Ordinance (LGO):** Abolished divisions and introduced a three-tiered system (districts, tehsils, union councils), with elected bodies at each tier.
- **Protection under 17th Amendment:** Local government system was protected for six years (2002-2009) against changes without presidential approval.
- **Post-2009:** The LGO lapsed, and local governments ceased to function. Each province is responsible for creating and legislating its local government plan.
- **Current Structure:** Pakistan has 113 districts, each with several tehsils and union councils. Tribal areas include seven tribal agencies and six frontier regions.

Regions

- **Provinces:** Sindh, Balochistan, Punjab, and Khyber Pakhtunkhwa.
- **Territories:** Islamabad Capital Territory, Federally Administered Tribal Areas (FATA), and Gilgit-Baltistan.
- **Azad Jammu and Kashmir:** Disputed territory with its own government and constitution but often referred to as "Pakistan Administered Kashmir."

Population

- **Independence:** Population was 32.5 million in 1947.
- **1998 Census:** Population was 132.35 million.
- **2011 Estimate:** Approximately 177.1 million, growing at 2.07% annually, though some estimates place it 10 million higher.
- **Future Projection:** Expected to reach 318 million by 2050, making it the third most populous country after India and China.

Provincial Governments

- **Structure:** Each province has a governor, a Council of Ministers led by a chief minister, and a provincial assembly.
- **Elections:** Members of provincial assemblies are elected through universal adult suffrage; reserved seats exist for minorities.
- **18th Amendment:** Clarified the division of responsibilities between federal and provincial governments, with services like health, education, and roads managed by provinces.

Political Parties

- **Pakistan Peoples Party Parliamentarians (PPPP):**

- Center-left, originally socialist, now centrist.
- Founded in 1967 by Zulfikar Ali Bhutto.
- Focus on providing "Roti, Kapra, aur Makaan" (food, clothing, and shelter).
- Led by Benazir Bhutto until her assassination in 2007; now led by Bilawal Bhutto Zardari with Asif Ali Zardari as co-chairman.
- Strong in rural Sindh and parts of Punjab, Khyber Pakhtunkhwa, and Balochistan.
- **Pakistan Muslim League Nawaz (PML-N):**
 - Center-right party founded in 1962, gained the "Nawaz" (N) label in 1993.
 - Led by Nawaz Sharif, who has served as Prime Minister twice.
 - Strongest support in North and Central Punjab, with presence in Khyber Pakhtunkhwa and Sindh.
- **Pakistan Muslim League (PML-Q):**
 - Centrist party formed in 2001 after a split from PML-N.
 - Supported General Pervez Musharraf and led a coalition government from 2002-2007.
 - The third largest party in parliament after PPPP and PML-N.
- **Muttahida Qaumi Movement (MQM):**
 - Began as a party for Urdu-speaking Mohajirs in Karachi and Hyderabad.
 - Founded by Altaf Hussain, who resides in exile in London since 1992.
 - Transitioned to a broader platform in 1997 to appeal outside urban Sindh.
 - Holds the fourth highest number of seats in the National Assembly.
- **Awami National Party (ANP):**
 - Leftist, secular party with roots in Khyber Pakhtunkhwa.
 - Linked historically to the Congress Party in pre-partition India.
 - Has faced conflicts with the federal government but currently part of ruling coalitions.
- **Pakistan Tehreek-e-Insaf (PTI):**
 - Founded by former cricketer Imran Khan in 1997.
 - A fast-growing political party aiming for mainstream status.
 - Focuses on justice and reforms, gaining significant support recently.
- **Religious Parties:**
 - Include Jamaat-i-Islami and Jamiat Ulema e Islam (Fazlur Rehman group).
 - Rarely secure more than 5% of votes.

- Muttahida Majlis-e-Amal (MMA) coalition gained prominence in the 2002 elections in Khyber Pakhtunkhwa and the National Assembly.